ABEL KUBARE
versus
JUDITH TARUVINGA N.O.
and
DECENT MOYO

HIGH COURT OF ZIMBABWE
MANYANGADZE J
HARARE, 17 & 20 November 2025

Opposed Application

A Ingwani, with *Y. Gawe*, for the applicant
L Michael, for the 2nd respondent

MANYANGADZE J: After hearing argument from both parties' counsel, I delivered an *ex tempore* judgment in which I granted the application. A request has been made for reasons for judgment. These are they.

This is an application for a review of the proceedings conducted by the first respondent in the Magistrates Court, which resulted in a determination rescinding a consent order which that court had issued.

The consent order, *inter alia*, cancelled an agreement of sale of an immovable property concluded by the applicant and second respondent. The first respondent cancelled the order on the basis that it was fraudulently obtained, in that the second respondent had not mandated his legal practitioners to consent to the order.

The applicant challenges the first respondent's judgment on the basis of

(1) Gross irregularity in the procedure, in that there was no founding affidavit in the application for rescission. What the first respondent relied on instead was a founding affidavit for an application for stay of execution.
(2) Gross irrationality in the decision, in that it allowed the second respondent to retain the money he was refunded despite rescission of the consent order. It was because of the consent order that the refund had been done.

In countering the applicant's averments, the second respondent contends that what the applicant is alleging constitutes grounds for appeal and not grounds for review. The

allegations by the applicant are that the first respondent erred in law and/ or in fact. Such an averment should be challenged on appeal.

The second respondent avers that the first respondent exercised judicial discretion, and an exercise of such discretion is impugned on appeal, not review.

Though the second respondent raised this issue as a point *in limine*, his entire submissions revolved around this point. Thus, the distinction between the merits and the point *in limine* became blurred.

The law that governs reviews is provided for in s 27 of the High Court Act [*Chapter 7:06*] ("the Act"). It reads as follows:

> " (1) Subject to this Act and any other law, the grounds on which any proceedings or decision may be brought on review before the High Court shall be-
>
> (a) absence of jurisdiction on the part of the court, tribunal or authority concerned;
>
> (b) interest in the cause, bias, malice or corruption on the part of the person presiding over the court or tribunal concerned or on the part of the authority concerned, as the case may be;
>
> (c) gross irregularity in the proceedings or the decision.
>
> (2) Nothing in subsection (1) shall affect any other law relating to the review of proceedings or decisions of inferior courts, tribunals or authorities."

From the above, it is noted that s 27 (1) (c) refers to gross irregularity in the ***proceedings*** or the ***decision***. The second respondent, it seems to me, has emphasised the proceedings and glossed over the decision aspect.

Procedure

In motion proceedings, the procedure requires that appropriate affidavits be filed, being the founding affidavit, opposing affidavit and answering affidavit if need be. Filing a founding affidavit for an *ex parte* application for stay of execution in an application for rescission of judgment, it seems to me, a gross irregularity in procedure.

To begin with, an application for rescission is not made *ex parte*. The requirements are different. The procedure is different. An *ex parte* application would be, invariably, predicated on the pending application for rescission, not the other way round. The normal sequence is that there is first a pending application for rescission of judgment. Then, pending its determination, interim relief is sought, which is in the form of a stay or suspension of execution of the judgment sought to be rescinded.

The second respondent vice-versed this procedure. There is no way a substantive application can be predicated on an interim application. Thus, the procedure adopted was fundamentally flawed.

The decision

This often causes confusion, as a decision is normally attacked on appeal. However, if it is birthed by a gross irregularity in the procedure, it cannot be allowed to stand. *In casu*, the decision arises out of a founding affidavit for stay of execution, which is an application for interim relief.

Further to that, the second respondent was made to retain the refund made in terms of the rescinded judgment. He cannot approbate and reprobate in such a patent manner. He cannot have his cake and eat it too.

Furthermore, the second respondent was present in the proceedings in which a consent order was given. It is always a tall order attempting to rescind a judgment granted by consent of the parties. Following the deed of settlement, the second respondent went to court in the company of his legal practitioners, where an order by consent was obtained. It was not obtained in his absence.

In my view, a cumulative consideration of all these factors lends sufficient weight to the applicant's averment of gross irregularity in the proceedings and gross irrationality in the decision. In the circumstances, the application for review must succeed.

In the result, it is ordered that:

1. The application be and is hereby granted.
2. The order issued by the first respondent on 3 March 2025 under Case No. HRE C-C 1628/24 be and is hereby set aside.
3. The second respondent bears the applicant's costs on the attorney and client scale.

MANYANGADZE J……

Ingwani, Chipetiwa Group of Lawyers, applicant's legal practitioners
Mugiya Law Chambers, 2nd respondent's legal practitioners